

## Vijay Pratap v. State of U.P. — writ withdrawn with liberty under Clause 6.5

Allahabad High Court · Division Bench · 19 April 2021 · WRIT - C No. 9746 of 2021 · **Dismissed as withdrawn with liberty to Clause 6.5.**

### HEADNOTE

On counsel's submission that the petitioner had a remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 (as amended on 10 August 2018), the Division Bench dismissed the writ petition as withdrawn with liberty to raise the grievance before the authority provided under that clause.

### FACTUAL SUMMARY

Vijay Pratap filed a writ petition against the State of Uttar Pradesh and two others over electricity-related grievances. When the Division Bench took the matter through video conferencing, counsel submitted that the petitioner had a remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005, as amended on 10 August 2018, and sought to withdraw the petition with liberty to approach the authority provided under that clause.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

clause-6.5-alternate-remedy

#### HOLDING

On counsel's submission that the petitioner had a remedy under Clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 (as amended on 10 August 2018), the writ petition was dismissed as withdrawn with liberty to raise the grievance before the authority concerned under that clause. ¶ 1

### PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The Court accepted counsel's concession of a Clause 6.5 remedy and dismissed the writ as withdrawn with liberty to approach the authority under that clause, without examining the merits of the electricity grievance. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCE

The Court did not examine the underlying dispute; the petition was withdrawn with liberty to Clause 6.5. ¶ 1